# Commercial Lease Agreement

Lease reference ACM-US-C-03

Acme Properties Inc. to Maple & Oak Bakery LLC · 1200 Main Street, Suite 100, Denver, CO 80202

## BASIC LEASE INFORMATION

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| **Landlord** | Acme Properties Inc. |
| **Tenant** | Maple & Oak Bakery LLC |
| **Guarantor** | Daniel Reyes |
| **Premises** | 1200 Main Street, Suite 100, Denver, CO 80202 |
| **Commencement Date** | September 1, 2026 |
| **Term** | 2 years from the Commencement Date, ending on August 31, 2028 |
| **Expiry Date** | August 31, 2028 |
| **Base Rent** | $50,400.00 per annum plus applicable taxes, payable by monthly instalments of $4,200.00 in advance |
| **Rent Escalation Dates** | September 1, 2027 (fixed percentage, 5%) |
| **CAM Charges** | Tenant's proportion; estimate $9,900.00 per annum |
| **Security Deposit** | $8,400.00 |
| **Permitted Use** | Bakery and cafe |
| **Renewal** | No right of renewal |
| **Lease Reference** | ACM-US-C-03 |

## LEASE TERMS

**1. Grant and Term**

The Landlord leases the Premises to the Tenant for the Term, commencing on the Commencement Date and expiring on the Expiry Date, on the terms of this Lease.

**2. Rent**

The Tenant shall pay the Base Rent monthly in advance on the first day of each period, without deduction or set-off. All amounts are in United States dollars (USD).

**3. Rent Escalation**

On each Rent Escalation Date (September 1, 2027) the Base Rent shall increase by 5% of the Base Rent payable immediately before that date.

**4. CAM Charges**

The Tenant shall pay the Tenant's proportion of the cam charges of the building, including rates, building insurance premiums, cleaning and maintenance of common areas, and management fees. The CAM Charges estimate for the first year of the Term is $9,900.00 per annum, payable monthly in advance by equal instalments, with an annual reconciliation against actual cam charges.

**5. Security Deposit**

On signing, the Tenant shall provide a security deposit of $8,400.00, to be held as security for the Tenant's obligations and returned within 30 days after the end of the Term less any sums properly deducted.

**6. Permitted Use**

The Tenant shall use the Premises only for the Permitted Use: bakery and cafe. Any change of use requires the Landlord's prior written consent.

**7. Renewal**

The Tenant has no right of renewal. Any new lease at the end of the Term is at the Landlord's discretion.

**8. Early Termination**

The Landlord may terminate this lease on or after September 1, 2027 by giving the other party not less than 60 days' written notice if it intends to redevelop or refurbish the building.

**9. Restoration**

At the end of the Term the Tenant shall at its own cost remove its fit-out, alterations and signage and reinstate the Premises to the condition recorded in the Premises Condition Report, repairing all damage, and shall pay the Landlord's costs of any restoration work the Tenant fails to carry out.

**10. Insurance**

The Landlord shall insure the building for full replacement value. The Tenant shall insure its contents and fit-out and hold public liability insurance of not less than $20,000,000, naming the Landlord as an interested party.

**11. Guarantee**

Daniel Reyes (the Guarantor) personally guarantees to the Landlord the payment of the Rent and all other money payable by the Tenant and the performance of the Tenant's obligations, and shall be liable jointly and severally with the Tenant.

**12. Governing Law**

This Lease is governed by the laws of the State of Colorado, United States of America.

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| Signed for the Landlord<br>Acme Properties Inc. | Signed for the Tenant<br>Maple & Oak Bakery LLC | Signed by the Guarantor<br>Daniel Reyes |